



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 620/11

BEFORE: J. Josefo: Vice-Chair

HEARING: March 31, 2011 at Toronto
Oral

DATE OF DECISION: May 11, 2011

NEUTRAL CITATION: 2011 ONWSIAT 1118

APPLICATION FOR ORDER REMOVING THE RIGHT TO SUE

APPEARANCES:

For the applicant: Ms. D. Stea, Barrister and Solicitor

For the respondent: Mr. N. Misir, Barrister and Solicitor
Mr. P. Kumar, Law Clerk

Interpreter: Ms. G. Nagra, Urdu language

THE RIGHT TO SUE APPLICATION

(i) Parties, facts and issues

- [1] The applicants MKG Imaging Solutions Inc. and the Standard Life Assurance Company, represented by Ms. D. Stea, are defendants in a civil action commenced in the Ontario Superior Court of Justice under Court File #07-CV-327756PD. The plaintiff in that civil action is Ms. Shamim Alam, the respondent in this within proceeding. Ms. Alam is represented by Mr. N. Misir.
- [2] This application and the within civil action arise out of a slip and fall accident occurring February 17, 2005. On that day Ms. Alam was on her way into the premises of her employer, MKG Imaging Solutions Inc., when, in the parking lot, she slipped and fell. Ms. Alam had just left the car of one of her work colleagues who customarily drove her along with some other people to and from work. When Ms. Alam fell early in the morning on February 17, 2005, it was approximately 15 minutes before her work shift was to commence. Ms. Alam was walking toward the MKG Imaging Solutions employee entrance that she typically used to enter the workplace.
- [3] Ms. Alam claimed WSIB benefits arising out of the February 17, 2005 slip and fall incident. She completed a Worker's Report of Injury/Disease (the Form 6) on or about October 17, 2005. On February 17, 2006 the WSIB Claims Adjudicator allowed the worker entitlement for medical aid as a result of the accident. Ongoing entitlement was, however, denied. The worker indicated an intention to appeal that decision but did not pursue a WSIB appeal. Ultimately, the above-referenced civil action was, instead, commenced. Ms. Alam sued her employer, MKG Imaging Solutions Inc., as well as the Standard Life Assurance Company, the owner of the building and premises in which the employer operated, for injuries she asserted were sustained in that slip and fall accident.
- [4] The defendants in the civil action (who are the applicants in this proceeding, herein referred to as the "applicants") commenced a third party action against J and M Enterprise Landscaping and Craig Jackson, the corporate entity and individual purportedly engaged to clear the snow from the parking lot and premises where MKG Imaging Solutions Inc. was located. I was informed that the third party action was, however, not pursued by the applicants.
- [5] While not conceding the point, Ms. Stea understood that the Standard Life Assurance Company, being neither in Schedule 1 or 2, was not under the ambit of the *Workplace Safety and Insurance Act* ("WSIA" or the "Act"). Pursuant to the sections of the WSIA discussed ahead, there is accordingly no bar against suit for an employer not in Schedule 1 or 2 of the Act. Thus, subject to the relevant sections of the Act, it is clear that the action against the Standard Life Assurance Company may proceed.
- [6] It was submitted by Counsel for the respondent that Ms. Amin should also be able to sue her employer, even though the employer is no longer in operation as it is being defended by its insurer. As justification for her ongoing right to sue, it was submitted that the employer did not have the requisite degree of control over the parking lot where Ms. Amin slipped and fell. Thus, even though Mr. Misir agreed that Ms. Alam was an employee of MKG Imaging Solutions Inc., and that she was involved in an activity "reasonably incidental" to her employment on

February 17, 2005, it was submitted that she nevertheless ought to be allowed to continue her lawsuit against her employer because the employer did not maintain sufficient control over the premises where the accident occurred.

(ii) Discussion and conclusions

[7] Ms. Alam testified regarding her activities on February 17, 2005. She confirmed that she was employed by MKG Imaging Solutions Inc. and, on the day in question, was driven to work by a co-worker as part of a car-pool arrangement. She testified that the co-worker simply parked in the parking lot in the area where workers of her employer were expected to park, at any open spot at the back or side of the parking lot. Ms. Alam confirmed that there were two employee entrances to the property from this parking lot. While walking from the car to an employee entrance, Ms. Alam sustained her slip and fall.

[8] Regarding issues of “control” over the parking lot, Ms. Alam testified that she saw a supervisor of her employer putting salt on the parking lot on some occasions. Her evidence was somewhat equivocal, but it became apparent to me that the parking lot was for use of those employees in the building where Ms. Alam worked, and this was not a parking area open to the general public.

[9] Ms. Alam also testified as to other businesses that operated out of the same premises where the employer was located. It is not in dispute that, as was discussed at the hearing, these entities are MKG Cartridge Systems Inc. and MKG Imaging Systems Inc., a/o Clear Print Technologies Inc. As was undisputed, all these incorporated entities operated out of the same location, 1090 Lorimar Drive, in Mississauga, Ontario.

[10] Mr. Misir placed great emphasis on the fact that the lease agreement, between the Standard Life Assurance Company as the lessor, was not with MKG Imaging Solutions Inc. but, rather, was with MKG Cartridge Systems Inc. It was also emphasized that the premises lease was made May 8, 1996 and it expired five years later in 2001, unless renewed pursuant to Schedule C of that Lease. It was emphasized that there was no evidence of any renewal, *albeit* Mr. Misir conceded that the employer continued to operate out of the same premises on Lorimar Drive as of the time of the accident in 2005.

[11] It was also emphasized by Counsel for the respondent that the snow-clearing contract with J and M Enterprises was entered into by MKG Cartridge Systems Inc., and not by MKG Imaging Solutions Inc. It was on these facts that Mr. Misir argued that the employer lacked the requisite degree of control over the premises, including the parking lot, which premises were in fact controlled by another corporate entity, MKG Cartridge Systems Inc., which was not the entity employing Ms. Alam.

[12] Both Counsel also provided submissions relying on various Tribunal decisions which interpret relevant Board policy that pertains to parking lots, and whether or not a worker can be said to be under the control of their employer in a parking lot. There was much discussion about the issue of “control”.

[13] It is helpful at this juncture to review the relevant sections of the Act. Sections 26, 27, 28 and 29 of the Act read as follows:

No action for benefits

26. (1) No action lies to obtain benefits under the insurance plan, but all claims for benefits shall be heard and determined by the Board. 1997, c. 16, Sched. A, s. 26 (1).

Benefits in lieu of rights of action

(2) Entitlement to benefits under the insurance plan is in lieu of all rights of action (statutory or otherwise) that a worker, a worker's survivor or a worker's spouse, child or dependant has or may have against the worker's employer or an executive officer of the employer for or by reason of an accident happening to the worker or an occupational disease contracted by the worker while in the employment of the employer. 1997, c. 16, Sched. A, s. 26 (2); 1999, c. 6, s. 67 (6); 2005, c. 5, s. 73 (6).

Application of certain sections

27. (1) Sections 28 to 31 apply with respect to a worker who sustains an injury or a disease that entitles him or her to benefits under the insurance plan and to the survivors of a deceased worker who are entitled to benefits under the plan. 1997, c. 16, Sched. A, s. 27 (1).

(2) If a worker's right of action is taken away under section 28 or 29, the worker's spouse, child, dependant or survivors are, also, not entitled to commence an action under section 61 of the Family Law Act. 1997, c. 16, Sched. A, s. 27 (2); 1999, c. 6, s. 67 (7); 2005, c. 5, s. 73 (7).

Certain rights of action extinguished

28. (1) A worker employed by a Schedule 1 employer, the worker's survivors and a Schedule 1 employer are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. Any Schedule 1 employer.
2. A director, executive officer or worker employed by any Schedule 1 employer.

Schedule 2 employer

(2) A worker employed by a Schedule 2 employer and the worker's survivors are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. The worker's Schedule 2 employer.
2. A director, executive officer or worker employed by the worker's Schedule 2 employer.

Restriction

(3) If the workers of one or more employers were involved in the circumstances in which the worker sustained the injury, subsection (1) applies only if the workers were acting in the course of their employment.

Exception

(4) Subsections (1) and (2) do not apply if any employer other than the worker's employer supplied a motor vehicle, machinery or equipment on a purchase or rental basis without also supplying workers to operate the motor vehicle, machinery or equipment. 1997, c. 16, Sched. A, s. 28.

Liability where negligence, fault

29. (1) This section applies in the following circumstances:

1. In an action by or on behalf of a worker employed by a Schedule 1 employer or a survivor of such a worker, any Schedule 1 employer or a director, executive officer or

another worker employed by a Schedule 1 employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.

2. In an action by or on behalf of a worker employed by a Schedule 2 employer or a survivor of such a worker, the worker's Schedule 2 employer or a director, executive officer or another worker employed by the employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.

(2) The employer, director, executive officer or other worker is not liable to pay damages to the worker or his or her survivors or to contribute to or indemnify another person who is liable to pay such damages.

Determination of fault

(3) The court shall determine what portion of the loss or damage was caused by the fault or negligence of the employer, director, executive officer or other worker and shall do so whether or not he, she or it is a party to the action.

(4) No damages, contribution or indemnity for the amount determined under subsection (3) to be caused by a person described in that subsection is recoverable in an action. 1997, c. 16, Sched. A, s. 29.

[14] Sections 27 and 28 in my view are of particular relevance in this matter. Section 27(1) provides that, where a worker is entitled to benefits under the Act, section 28 and following apply. Such a worker employed by a Schedule 1 employer may thus not commence an action against, *inter alia*, any Schedule 1 employer. What Ms. Alam is thus attempting in this matter, however is, if she is a worker entitled to benefits under the Act, exactly that which is strictly prohibited by the Act: she wants to sue her own Schedule 1 employer.

[15] I agree with Mr. Misir that, as has been stated in many Tribunal decisions, the right to sue is a long-standing common law right. I further agree that it is not taken away lightly, and the exceptions barring the right to sue in the WSIA are to be construed narrowly. Yet, the "historic bargain", which allows workers to seek entitlement to benefits without having to go through the process of civil litigation, was meant to specifically prevent exactly the kind of legal action which Ms. Alam has commenced against her own employer in this circumstance as I find exists. These reasons will explain why I so conclude.

[16] Ms. Alam was, it was correctly conceded by Mr. Misir at the hearing, a worker of a Schedule 1 employer. The argument in Mr. Misir's written statement, that there was no proof that Ms. Alam was a worker of the employer, was rightly abandoned. Indeed, it was clear from Ms. Alam's testimony that she was indeed a worker, as Mr. Misir ultimately acknowledged. She was, in fact, a labourer for the employer who worked on a regular and consistent basis for that employer for approximately five years prior to the unfortunate slip and fall accident.

[17] The evidence is also clear, as Mr. Misir acknowledged, that the slip and fall accident occurred approximately fifteen minutes before Ms. Alam's shift was to start on the morning of February 17, 2005. I agree with Tribunal *Decision No. 336/06*, and OPM Document No. 15-02-02 that arriving fifteen minutes prior to the start of a work shift is a reasonable period for Ms. Alam to have been present.

- [18] It is also clear that she was walking directly into the employer's facility from the private parking lot that workers at this location habitually used when she fell. Thus, I find that Ms. Alam was engaged in an activity which was reasonably incidental to her employment at the time of her slip and fall. It is also clear that MKG Imaging was at the time a Schedule I employer.
- [19] Has the criteria of "place, time and activity" been met such that Ms. Alam can be found to be in the course of her employment (or engaged in a reasonably incidental activity) at the time of her slip and fall? The only remaining question is whether the accident occurred either on the employer's premises, or if the employer exercised sufficient control over those premises such that the accident happened in the course of employment.
- [20] In other words, the issues of "time" (fifteen minutes prior to a work-shift) and "activity" (one which is reasonably incidental to employment) have already been answered. What has yet to be addressed is whether the "place" of the accident is under the control of the employer, such as to render the accident one which occurred in the course of employment. Section 28 of the WSIA only, after all, applies if the worker is entitled to WSIB benefits. In that regard, see section 27(1) of the WSIA.
- [21] Reversing the question—asking if Ms. Alam would, given these same facts and circumstances surrounding her accident, be entitled to WSIB benefits—leads me to the ultimate answer. As the Board correctly, in my view, determined, she should have entitlement for such an accident. Indeed, it would be a miscarriage of justice to deny a worker entitlement to WSIB benefits when a worker slips and falls in a parking lot over which her employer had sufficient control when that worker was on her way into work. Imagine if the employer in this case sought to oppose initial entitlement to a worker's WSIB claim only because a separately incorporated (although it appears related, given the corporation has the same initials of "MKG") entity actually was the lessee of the premises? Such an argument would hardly likely have been sufficient to rebut the worker's claim, which indeed she had earlier made to the WSIB, for initial entitlement to WSIB benefits.
- [22] Ms. Alam confirmed that she saw a supervisor of her employer putting salt on the parking lot on some occasions. Attempting to keep the parking lot clear of ice and snow, in my view, indicates that the employer saw itself as responsible for and at least having some degree of control over the parking lot.
- [23] The evidence, although again somewhat shaky as Ms. Alam testified hesitantly (given she has an interest in the outcome of this proceeding, her hesitancy in acknowledging what I find, after her five years of employment that she likely knew, is understandable) was, when coupled with the written materials before me, sufficiently clear so that I can safely conclude that employees of MKG Imaging Solutions Inc. were directed to park in this particular parking lot which was very close to the entrance doors into the facility where Ms. Alam's employer operated.
- [24] There were other business also on the same premises, yet I find that they were likely related given the common name and the fact that all operated out of the same premises. In my view, it is reasonable to infer that these common-named businesses were not at "arms-length"

but were part of a family of “MKG” businesses then in existence, all operating out of the same Lorimar drive facility. That these related entities may have in some way shared control over the private parking lot for these common businesses leads me to conclude that Ms. Alam’s employer had, again, at least some degree of control over and responsibility for the parking lot. If not, after all, why would a supervisor from Ms. Alam’s employer be salting the parking lot? Accordingly, I find that, despite Ms. Alam’s employer not being named in the lease agreement, the employer still exercised sufficient control over the parking lot such that the worker was in the course of her employment at the time of the accident.

[25] Counsel each reviewed many decisions in their submissions. Tribunal *Decision No. 1178/10*, relied upon by Mr. Misir, involved a worker who sued the driver of another motor vehicle when that driver hit the putative plaintiff. Yet, the finding of the Vice-Chair who decided Tribunal *Decision No. 1178/10* was that the plaintiff/respondent was not in the course of employment when he was injured. Those are not the facts before me.

[26] Similarly, Tribunal *Decision No. 381/10* also involved a worker who was not in the course of employment at the time of the accident. Tribunal *Decision No. 381/10* came to the following conclusion:

I find the facts of this case to be more similar to those found in *Decision Nos. 2008/05, 1827/08, 461/05 and 309/08*. In this case, we have a worker who was injured after her regular work hours and outside of her work premises, while walking to a friend’s car that was located in a parking lot that was not owned or controlled by her employer. Given the particular facts of this case, I cannot conclude that the worker was in the course of her employment at the time she was injured.

[27] Again, the facts from that above-referenced decision are the antithesis of the facts before me. In this matter Ms. Alam was clearly involved in an activity which was reasonably incidental to her employment.

[28] Tribunal *Decision No. 309/08*, also relied upon by Mr. Misir, is equally distinguishable. In that matter the injured individual’s lawsuit was allowed to proceed, yet the individual never sued her employer, a large retail chain. Rather, the injured party sued the shopping center owner where the accident occurred as well as the company which was supposed to clear snow in that shopping center but was alleged to have not done so, leading to the accident. The action was allowed to proceed as against the shopping center owner and as against the snow clearing contractor but, unlike in this matter before me, the respondent never commenced an action against her own employer, the retail chain, for the injuries she sustained in the parking lot (which parking lot was ultimately not found to be within the control of her employer).

[29] Tribunal *Decision No. 1827/08*, also relied upon by Mr. Misir, is also distinguishable for the same reasons. The injured individual in Tribunal *Decision No. 1827/08* was on her way into work at a retail store. The individual slipped on ice in the parking lot when attempting to walk from her car to the retail store. Yet the individual did not bring suit against her employer. Rather, she sued the shopping center owner. Given that the employer did not “regulate or allocate” the parking area over which it had non-exclusive use, Tribunal *Decision No. 1827/08* ultimately concluded that the individual was not in the course of her employment because the parking area was not under her employer’s control. Thus, the individual was able to maintain her

lawsuit. Again, by contrast, Ms. Alam was very much a worker, and very much in the course of employment when the accident occurred.

[30]

Tribunal *Decision No. 431/09* is also quite relevant. This matter involved a school-board employee who parked on premises not belonging to her employer but rather belonged to a church close-by. Despite parking in the church parking lot, located a five minute walk from the entrance, it was still concluded that the school-board controlled that parking lot, leading to the finding that the worker was in the course of her employment when she slipped and fell. Tribunal *Decision No. 431/09* stated in that regard as follows:

But the lack of an obligation to provide parking, even if Ms. Russell is correct, also does not in itself determine the issue of whether the employer had the requisite degree of control over the church parking lot.

That there was no gate or card pass at the church parking lot also does not negate whatever control might have existed on the part of the employer. The lack of a gate is, in my view, an insignificant factor when considering whether the employer exercised the requisite degree of control over this parking lot.

What is clear is that, relying upon the testimony of the worker and LD, employees of the centre were provided with a parking “permit”. This permit authorized (or *permitted*) the employees to park where I find there were told to park: initially at the church parking lot, subsequently at either the church parking lot or at the Polish hall. I find that the employer had to make arrangements for its staff who were employed at the centre because, as indicated in the findings of fact above, there was only very limited parking spaces available at the centre. There were no more than six spaces available and the evidence indicates that there were at least 100 employees, if not more, who were based at the centre during the relevant time.

Thus, it was practically in the employer’s interest to ensure that its staff had parking places. This is particularly relevant for this worker who was, after all, an “itinerant worker”. The worker was obligated to travel to various schools within the school board’s operation in order to perform her duties as a Braille interpreter and transcriber.

...

It must be remembered that, absent the availability of the church parking lot, there would be very limited parking available for the over 100 employees, some of whom drive, and some of whom have to drive as they require their cars in the performance of their work duties. The centre itself had no spaces available for non-disabled parking throughout the day, as contrasted with a few spots available for “pick up – drop off” purposes. The Polish hall parking lot was not available until some years after the worker began her employment with the school board. For quite some time the only reliable place where those employed by the centre could park was the church parking lot. Subsequently, when that became too crowded, the school board entered into an arrangement to secure use of the Polish hall parking lot in addition to the church parking lot.

In my view, both the church and the school board benefitted equally from their arrangement. While there was not a formal lease or other documentation, this longstanding oral agreement obviously must have suited both parties as the agreement remained in place through to the demolition of the centre in 2005, some time after the worker’s work accident.

...

The reason for this policy is very clear. Tribunal *Decision No. 321/99*, involving a “right to sue” application, well explained the rationale for the policy:

Reading the Board’s policy stipulations, I am persuaded that the test to be applied to the facts in this case is whether the evidence establishes that Ms. Rath’s employer had a sufficient degree of control over the parking lot where Ms. Rath was injured to bring the lot within the scope of “employer’s premises”.

The rationale for the Board’s control test is obvious. Control implies responsibility for ensuring that injuries do not occur on the premises in question. Hence, an employer must have sufficient control over the premises to meet the responsibility to prevent accidents.

Tribunal *Decision No. 2675/08* involved an application to remove the right to sue, after an individual sustained injury in a fall in a parking lot. The Vice-Chair summarized the state of the law in this regard in part as follows:

The question of whether a worker injured in an employer’s parking lot is in the course of employment has been addressed on numerous occasions by this Tribunal. A general consensus is evident in the jurisprudence. If the worker is in the parking lot for reasons which are reasonably incidental to his or her employment, then the worker will be regarded as being in the course of employment. Being in a parking lot for the purpose of coming to work or leaving work is regarded as reasonably incidental to employment. This test is referred to as the “premises test” and is described in *Decision No. 643/02* as follows:

The majority of Tribunal decisions on accidents occurring in parking lots have favoured what is referred to as the premises test. The premises test, which emphasises the geographic location of the accident, has been treated as establishing that a personal injury by accident sustained on the employer’s premises occurs in the course of employment—unless the worker’s activity is sufficiently remote from normal employment functions that the activity and resulting injury cannot be characterised as reasonably incidental to employment.

Decision No. 643/02 involved a worker who was injured when he fell off his bicycle in his employer’s parking lot. Applying the “premises test” set out above, the Panel held that the worker was in the course of employment at the time of the accident:

In this case, the worker’s use of a bicycle to travel to the workplace for a pre-scheduled shift was an activity reasonably incidental to his employment. Entitlement under the *WSIA* is available to workers whose injuries arise out of or in the course of employment. The worker suffered an accident while on the employer’s premises for an activity reasonably incidental to his employment. Therefore, the worker has entitlement under the *WSIA*.

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...

The distinguishing factors from that above decision with the facts of the matter before me are, I suggest, obvious. The school board and the diocese had, I find, a longstanding agreement, *albeit* not in writing, which addressed the use of the church parking lot by school board employees based at the centre. The agreement was formalized to the point that school board employees had a permit handed to them on commencement of employment, which they were instructed to use whenever parking at the centre, which was for some long time the closest and indeed only reliably available source of parking for the centre’s employees.

[31] Thus, in that case as in this one before me, even though a different corporate entity owned the parking lot (in this matter, the different but likely related MKG entity leased the premises from Standard Life), it was still found that the employer had the requisite degree of control. Tribunal *Decision No. 431/09* also well summarized Tribunal *Decision No. 2270/08*, as follows:

Tribunal *Decision No. 2270/08* involved a worker who parked her vehicle in a parking lot at the rear of a building and, while walking through the lot into the building, slipped and fell on ice. The Board concluded that, since the employer neither owned nor leased the portion of the parking lot where the worker fell, the worker did not injure herself on the employer’s property. It was also considered that the worker had not started her work shift and was not acting within the scope of her employment, so that the injuries did not arise in the course of employment.

[32] In this matter, also, there are many similarities between Ms. Alam and what those prior cases describe. I also reiterate that the WSIB, in correspondence dated February 17, 2006, concluded that Ms. Alam was in the course of employment when she claimed injury following what the Adjudicator described as a “work-related accident”. Ms. Alam’s Form 6 report referenced above also indicates that she “slipped outside one of MKG’s entrances”. The Form 6 report also confirms the worker reported this incident to the HR Manager “right after the

incident”. Clearly, by reporting the accident to her HR manager, Ms. Alam at the time did not question that her employer had control over the premises.

[33] Finally, I reference Tribunal *Decision No. 185/06*. That decision also makes it clear that accidents which occur in an employer’s parking lot while a worker is arriving at or leaving from the workplace are accidents which arise out of and are in the course of employment. Thus, the accident which befell Ms. Alam clearly has a “work-related nexus” to it, as that phrase is used in Tribunal *Decision No. 2270/08* referenced above, so it was determined to be a compensable accident as, indeed, the Board correctly concluded in this matter.

[34] Thus, despite the thorough efforts of Counsel for the respondent, the key fact which prohibits the worker’s lawsuit from continuing against her employer is that she sued her employer when, at the time of the accident, considering the above-referenced criteria of “place, time, and activity”, she was in the course of employment or, more accurately, was involved in a reasonably incidental activity thereto. Thus, Ms. Alam does not have the right to sue MKG Imaging Solutions Inc.

[35] As stated at the outset of these reasons, the other defendant in this matter, the Standard Life Assurance Company which owns the Lorimar Drive premises, is not immune from suit. The Standard Life Assurance Company is neither a Schedule 1 nor a Schedule 2 employer and thus does not have the protection provided under section 28 of the Act. Thus, Ms. Alam may continue her lawsuit against the Standard Life Assurance Company.

[36] Section 29(3), set out above, however, provides that the Court will determine the portion of loss or damage caused by the fault or negligence of the employer, and section 29(4) provides that the “damages, contribution or indemnity” determined under subsection 29 (3) as caused by the employer would not be recoverable in an action. As section 29(3) and (4) provide, the apportionment of fault lies with the court, and not with the Tribunal.

DISPOSITION

[37] The application is allowed in part. The right of the respondent to commence and continue her action against the applicant MKG Imaging Solutions Inc. as a result of a slip and fall in a parking lot on February 17, 2005, is taken away by the WSIA. The respondent's right to commence and continue an action against the applicant the Standard Life Assurance Company is not taken away by the WSIA.

[38] Pursuant to section 29(3) & (4) of the WSIA, the determination and any apportionment of damages caused by the negligence of the employer will be made by the Court, as discussed herein.

DATED: May 11, 2011

SIGNED: J. Josefo